

# Legal documents — drafts for counsel

All five are drafts prepared by the principal with AI assistance. **None is legal advice.** Bracketed fields [LIKE THIS] need a decision; blocks marked [COUNSEL] are specific questions.

| Document                    | Pages | Priority                                                                                                                       |
|-----------------------------|-------|--------------------------------------------------------------------------------------------------------------------------------|
| MSA.md                      | ~6    | <b>Review first.</b> §3 (no outcome guarantee), §9 (measurement data rights), §12 (liability cap) are the clauses that matter. |
| CASL-screening-procedure.md | ~3    | <b>Review first.</b> Highest legal exposure in the business — CAD \$10M per violation, director liability.                     |
| SOW-template.md             | ~2    | Mostly scope mechanics.                                                                                                        |
| privacy-policy.md           | ~3    | Largely standard; §3 needs a decision on email tracking.                                                                       |
| website-terms.md            | ~3    | Largely standard; §2 disclaims the free report.                                                                                |

## Suggested instruction to counsel

*We are a Manitoba corporation selling marketing measurement and content services to United States business customers, remotely, with no US presence. Please review these five drafts. Our three concerns, in order: 1. **Outcome-guarantee exposure.** We measure and try to influence third-party AI systems we do not control. MSA §3 is meant to foreclose any claim that we promised a result, including claims founded on pre-contract statements. 2. **CASL.** We send commercial email from Canada to US recipients and rely on the foreign-state exemption in ECPR para. 3(f). Please confirm the analysis and whether our country screen supports the required reasonable belief. 3. **Rights in aggregated measurement data.** MSA §9 lets us publish anonymised aggregate research built from client and prospect measurements. This is a core business asset; please confirm it is adequately drafted and that it survives termination. Also of note: jurisdiction (MSA §16) — US clients often resist Manitoba, and we would like a fallback position.*

## Sequencing

Send the MSA, the CASL procedure, and the compliance policy (./business-plan/COMPLIANCE-POLICY.md) together — they cross-reference, and reviewing them as a set costs less than three engagements. The SOW, privacy policy, and terms can follow, since unpaid pilot work carries no contract risk.

# Master Services Agreement

**DRAFT FOR REVIEW BY COUNSEL — NOT LEGAL ADVICE.** Drafted by the principal with AI assistance. Bracketed items [LIKE THIS] need a decision or confirmation. Sections marked ■ are the ones most likely to matter in a dispute; please read those first.

**Between:** Glass House Gardens Inc., a Manitoba corporation carrying on business as *Shortlist AIO* ("**Provider**") **And:** the client named in the Statement of Work ("**Client**") **Effective:** the date of the first executed Statement of Work.

## 1. Definitions

"**Services**" — the work described in a Statement of Work. "**SOW**" — a Statement of Work executed under this Agreement, in the form attached. "**Deliverables**" — work product Provider delivers to Client under an SOW. "**Answer Engines**" — third-party AI answer and search systems (for example ChatGPT, Perplexity, Google AI Overviews, Claude). "**Measurement Data**" — data Provider generates by querying Answer Engines, including prompts, responses, sources, and derived scores. "**Confidential Information**" — non-public information disclosed by one party to the other and marked, or reasonably understood, as confidential.

### 1A. ■ Trading name

1A.1 Provider's legal name is **Glass House Gardens Inc.** Provider markets and delivers the Services under the trading name **Shortlist AIO**, and operates the website at shortlistaio.com.

1A.2 **The contracting party is Glass House Gardens Inc.** Invoices, payment instructions, and notices are issued in that name. Client should expect the corporate name, not the trading name, on financial records.

1A.3 The trading name confers no separate legal personality, and nothing in any marketing material creates an obligation of any entity other than Glass House Gardens Inc.

*[COUNSEL] Manitoba generally requires a business name registration to carry on business under a name other than the corporation's registered name. Please confirm whether registering Shortlist AIO is required **before** the first paid engagement rather than later — the trading name will appear on the website, in outbound email, on invoices, and in this agreement from day one, which we assume triggers the requirement sooner than a purely internal brand would. Please also confirm the correct execution form: whether contracts should read "Glass House Gardens Inc." alone, or "Glass House Gardens Inc. o/a Shortlist AIO", and whether the latter is available only post-registration.*

## 2. Services

2.1 Provider will perform the Services described in each SOW. Each SOW forms part of this Agreement.

2.2 Where an SOW conflicts with this Agreement, the SOW governs **only** for the matters it expressly addresses, and only where it says it is overriding this Agreement.

2.3 Provider may engage subcontractors but remains responsible for their work.

### 3. ■ Nature of the Services — activities, not outcomes

3.1 **Provider does not control Answer Engines.** Answer Engines are operated by third parties who may change their models, ranking, citation behaviour, indexing, or terms at any time, without notice, and without regard to Client's interests.

3.2 **Provider therefore makes no representation, warranty, or guarantee** as to: any level of mention, citation, ranking, share of voice, visibility, traffic, leads, revenue, or any other outcome; the time within which any change may occur; or the persistence of any result achieved.

3.3 Provider's obligation is to perform the **activities** specified in the SOW — the defined volume of research, content, measurement, outreach, and reporting — to a professional standard. Performance is measured against those activities.

3.4 Any figures in proposals, forecasts, or reports are estimates and illustrations, not commitments.

3.5 **Measurement is a sample, not a census.** Answer Engines are non-deterministic; identical queries produce different responses over time. Reported figures describe a sampled prompt set at a point in time.

*[COUNSEL] §3 is the single most important clause. Please confirm it is drafted tightly enough to foreclose an outcome-guarantee claim, including claims founded on pre-contract marketing statements.*

### 4. ■ AI-assisted delivery

4.1 Client acknowledges that Provider uses artificial intelligence systems extensively in producing the Deliverables, including research, drafting, analysis, and code, under human direction and review.

4.2 Provider reviews Deliverables before delivery but does not warrant that AI-generated content is free of error. Client is responsible for final review and approval before publishing any Deliverable.

4.3 Provider will not represent AI-generated content as human-authored where a third party requires disclosure of authorship.

### 5. ■ Compliance and ethical limits

5.1 Provider performs the Services in accordance with its Compliance & Ethics Policy, as amended from time to time, which is incorporated by reference. The current version is provided to Client on request.

5.2 **Provider will not, and will not assist Client to:** create, buy, sell, or broker consumer reviews or testimonials, including AI-generated ones; compensate or incentivise any person to express a particular sentiment; post to any platform while impersonating Client or using unattributed accounts; operate or supply any website presenting itself as an independent review or comparison source while controlled by Provider or Client; suppress or conceal negative reviews; or fabricate research findings, statistics, or survey results.

5.3 These limits apply regardless of Client instruction. **A Client instruction to do any of the above is a material breach**, and Provider may suspend or terminate immediately under §7.3.

5.4 Client is responsible for the accuracy of factual claims about its own business that it supplies or approves, and for compliance with advertising rules specific to its industry.

## 6. Fees and payment

6.1 Fees are stated in the SOW in **US dollars** and are payable in US dollars.

6.2 Recurring fees are invoiced monthly in advance; one-time fees are invoiced on execution. Payment is due [NET 15 / ON RECEIPT] by the method Provider specifies.

6.3 Overdue amounts accrue interest at [1.5%] per month or the maximum permitted by law, whichever is lower. Provider may suspend Services on [10] days' written notice of non-payment.

6.4 Fees exclude taxes. Provider is a Canadian supplier; services supplied to a non-resident, non-GST/HST-registered Client are expected to be zero-rated. Provider will supply a **Form W-8BEN-E** on request. Client will not withhold from payments; Provider performs the Services outside the United States, and the amounts are not US-source income.

6.5 Provider may increase recurring fees on [60] days' written notice, effective at the start of a renewal month. Client may terminate under §7.2 if it does not accept the increase.

## 7. Term and termination

7.1 Each SOW has an initial term of **three (3) months** from the effective date, then continues month to month.

7.2 After the initial term, either party may terminate an SOW on **thirty (30) days'** written notice, effective at the end of a billing month.

7.3 Either party may terminate immediately on written notice if the other materially breaches and fails to cure within [15] days of notice, or immediately and without cure for a breach of §5.3.

7.4 On termination: Client pays for Services performed and irrevocably committed through the effective date; Provider delivers Deliverables for which payment has been received; each party returns or destroys the other's Confidential Information on request.

7.5 Fees paid for a period already commenced are **not refundable**, save where Provider terminates without cause.

7.6 §§3, 5, 8, 9, 10, 11, 12, 13 and 16 survive termination.

## 8. ■ Intellectual property

8.1 **Deliverables.** On receipt of full payment for the relevant SOW, Provider assigns to Client all right, title, and interest in the Deliverables, and waives moral rights in them to the extent permitted by law. Before payment, Client has no licence to use them.

8.2 **Provider Materials.** Provider retains all right, title, and interest in everything it uses to produce the Deliverables and which is not itself a Deliverable, including its scanner software, prompt libraries, measurement methodology, templates, processes, and know-how ("**Provider Materials**"). Where a Deliverable embeds Provider Materials, Provider grants Client a perpetual, worldwide, non-exclusive, royalty-free licence to use them as part of that Deliverable.

8.3 **Client Materials.** Client retains ownership of everything it supplies and grants Provider a licence to use it for the purpose of performing the Services.

8.4 Provider may describe the engagement and use Client's name and logo as a reference **only with Client's prior written consent**, which may be withdrawn on [30] days' notice.

## 9. ■ Measurement Data and published research

9.1 Provider owns the Measurement Data it generates.

9.2 Provider may use Measurement Data in **aggregated and anonymised** form for benchmarking, product improvement, and published research, including its periodic industry index.

9.3 Provider will **not** identify Client, Client's brands, or Client's individual results in any publication without Client's prior written consent. Aggregations will be constructed so that Client's individual figures cannot reasonably be derived from them.

9.4 §9.2 survives termination in respect of Measurement Data generated during the term.

*[COUNSEL] §9 underpins a core business asset. Please confirm the anonymisation standard in §9.3 is adequate and that the survival in §9.4 is enforceable.*

## 10. Confidentiality

10.1 Each party will protect the other's Confidential Information with at least reasonable care and use it only to perform or receive the Services.

10.2 The obligation does not apply to information that is or becomes public without breach, was known before disclosure, is independently developed, or is lawfully received from a third party.

10.3 A party may disclose Confidential Information where legally compelled, giving the other prompt notice where lawful.

10.4 Obligations continue for [3] years after termination, and indefinitely for trade secrets.

## 11. Warranties and disclaimer

11.1 Each party warrants it has authority to enter this Agreement.

11.2 Provider warrants it will perform the Services in a professional and workmanlike manner, consistent with industry standards.

11.3 **Except as expressly stated, the Services and Deliverables are provided "as is". Provider disclaims all other warranties, express, implied, or statutory, including merchantability, fitness for a particular purpose, non-infringement, and any warranty as to results.** §3 applies in full.

## 12. ■ Limitation of liability

12.1 Neither party is liable for indirect, incidental, special, consequential, exemplary, or punitive damages, or for lost profits, revenue, goodwill, or data, however caused.

12.2 Each party's total aggregate liability arising out of this Agreement is limited to the **fees paid by Client to Provider in the three (3) months preceding the event** giving rise to the claim.

12.3 §§12.1 and 12.2 do not limit liability for a party's fraud, wilful misconduct, breach of confidentiality, or amounts owed under §6, or any liability that cannot be limited at law.

## 13. Indemnification

13.1 Client indemnifies Provider against third-party claims arising from Client Materials, from factual claims about Client's business that Client supplied or approved, or from Client's use of Deliverables in a manner not contemplated by the SOW.

13.2 Provider indemnifies Client against third-party claims that a Deliverable, as delivered and excluding Client Materials, infringes that party's intellectual property rights.

13.3 The indemnified party will give prompt notice, allow the indemnifier to control the defence, and cooperate reasonably.

## 14. Independent contractor

Provider is an independent contractor. Nothing creates a partnership, joint venture, agency, or employment relationship. Neither party may bind the other.

## 15. Non-solicitation

During the term and for [12] months after, neither party will knowingly solicit for employment any individual who performed or received the Services on the other's behalf. General advertising not targeted at such individuals is permitted.

## 16. Governing law and disputes

16.1 This Agreement is governed by the laws of the **Province of Manitoba** and the federal laws of Canada applicable there, without regard to conflict-of-laws rules. The UN Convention on Contracts for the International Sale of Goods does not apply.

16.2 The parties submit to the exclusive jurisdiction of the courts of Manitoba.

16.3 The parties will attempt in good faith to resolve any dispute by negotiation for [30] days before commencing proceedings.

*[COUNSEL] US clients frequently push back on Manitoba jurisdiction. Please advise on a fallback — neutral-venue arbitration, or accepting the defendant's forum — and on enforceability against a US-domiciled client.*

## 17. General

17.1 **Notices** in writing, to the email addresses in the SOW; deemed received on the next business day. 17.2 **Assignment** — neither party may assign without the other's consent, not to be unreasonably withheld, except to a successor of substantially all its business. 17.3 **Force majeure** — neither party is liable for delay caused by events beyond its reasonable control, including failure or material change of any Answer Engine or third-party API. 17.4 **Entire agreement** — this Agreement and the SOWs supersede all prior discussions, including any pre-contract statements about likely results. 17.5 **Amendment** — only in writing signed by both parties. 17.6

**Severability** — an unenforceable provision is modified to the minimum extent necessary, and the rest continues. 17.7 **Waiver** — no waiver unless in writing; no single waiver is a continuing waiver. 17.8 **Counterparts** and electronic signatures are valid.

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**Provider:** Glass House Gardens Inc. — signature, name, title, date **Client:** [CLIENT LEGAL NAME] — signature, name, title, date

# CASL Screening Procedure — Outbound Email

***DRAFT FOR REVIEW BY COUNSEL — NOT LEGAL ADVICE.** This is the operating procedure that keeps outbound email inside CASL. It is the highest-exposure process in the business and is written to be audited.*

## 1. Why this document exists

Provider sends commercial electronic messages ("CEMs") from computer systems located in Canada. **Canada's Anti-Spam Legislation applies on that basis alone, regardless of where the recipient is.** CASL is consent-based rather than opt-out. Administrative monetary penalties reach **CAD \$10 million per violation** for a corporation, directors and officers may be personally liable, and CASL carries a private right of action.

Under CASL the **sender bears the burden of proving** consent or the application of an exemption. This procedure exists to make that proof routinely available.

## 2. The basis we rely on: the foreign-state exemption

Paragraph 3(f) of the *Electronic Commerce Protection Regulations* exempts a CEM from CASL's consent requirement where:

1 the sender **reasonably believes** the message will be accessed in a listed

foreign state — the **United States** is listed; and

1 the message **conforms to the law of that state** addressing conduct

substantially similar to CASL — for the United States, **CAN-SPAM**.

Provider's cold outbound is therefore **United States only**, and every message complies with CAN-SPAM.

***[COUNSEL]** Please confirm this analysis for our fact pattern, and confirm that the country screen in §3 is a sufficient basis for the "reasonable belief" in limb 1.*

## 3. Country screen — the controlling control

**3.1** A recipient enters a cold sequence **only** where the company has been positively identified as United States-based.

**3.2** Identification is from **company records** — registered address, head office, or the address published on the company's own site — and is recorded with its source. **A top-level domain is not sufficient evidence** of location and must not be used on its own.

**3.3** Where location cannot be positively established, the recipient **does not enter a cold sequence**. Ambiguity resolves against sending.

**3.4** The screen is applied at list build and re-verified before each send.

**3.5** Canadian recipients are **excluded from cold outbound entirely**. See §5.

**3.6** The screen is implemented in the list pipeline as a hard gate that blocks the send, not as a checklist step. A recipient without a recorded, verified country cannot be added to a sequence.

## 4. CAN-SPAM conformity — every message, no exceptions

- Accurate "From", "Reply-To", and routing information; the sending domain is owned by Provider.
- A subject line that accurately reflects the message.
- Identification of Provider as the sender, with a valid **physical postal address** (the Manitoba registered office).
- A clear, working unsubscribe mechanism.
- Opt-outs honoured within **10 business days**; in practice, immediately.
- A global suppression list checked before every send.
- No harvested addresses; no dictionary attacks.

## 5. Canadian recipients

**5.1** Canadian recipients are excluded from cold outbound by default.

**5.2** If Provider later chooses to approach Canadian prospects, each message must rest on **express or implied consent** established and logged *per recipient* before sending. Implied consent by conspicuous publication requires **all** of:

- the recipient's electronic address is **conspicuously published**;
- the publication is **not accompanied by a statement** that the person does not wish to receive unsolicited commercial messages; and
- the message is **relevant to that person's business, role, or functions**.

**5.3** Implied consent expires and must be tracked: **two years** from the end of a business relationship or transaction; **six months** from an inquiry. Expired consent is treated as no consent.

**5.4** Every Canadian CEM carries full CASL sender identification and an unsubscribe mechanism honoured within 10 business days.

## 6. Record keeping — the proof obligation

For **every** recipient contacted, Provider records and retains for [3] **years**:

| Field                        | Example                                                  |
|------------------------------|----------------------------------------------------------|
| Recipient address and role   | ops@example.com, VP Marketing                            |
| Company and verified country | Example Inc., <b>United States</b>                       |
| Country evidence and source  | Head office address, example.com/about, retrieved [date] |

| Field                             | Example                                |
|-----------------------------------|----------------------------------------|
| Basis relied on                   | ECPR 3(f) foreign-state exemption      |
| Address source and date collected | Company website, [date]                |
| Messages sent                     | Campaign, template version, timestamps |
| Opt-out status and date honoured  | —                                      |

Records are exportable on request, so a regulator inquiry is answered from a report rather than a reconstruction.

## 7. Additional belt-and-braces position

Provider's list is built from **conspicuously published business addresses**, and every message is **relevant to the recipient's role** by construction — it contains measurement of that recipient's own company. Provider therefore expects to satisfy CASL implied consent on the merits **in addition to** the foreign-state exemption, at negligible extra cost.

*[COUNSEL] If you prefer, we can rely on this as the primary basis rather than the fallback. Please advise which posture you want documented.*

## 8. Escalation and review

**8.1** Any complaint alleging a CASL or CAN-SPAM breach is escalated to the principal **within one business day**, the relevant sequence is paused, and the recipient's record is produced.

**8.2** Sending stops entirely if the spam complaint rate exceeds **0.10%**.

**8.3** This procedure is reviewed **quarterly**, and immediately on any change to CASL, the Regulations, the listed-state schedule, CAN-SPAM, or the opening of a new target geography. **No new geography is opened until this procedure has been extended to cover it and reviewed.**

# Statement of Work

**DRAFT FOR REVIEW BY COUNSEL.** Executed under, and governed by, the Master Services Agreement. Fill the bracketed fields per engagement.

**SOW number:** [001] **Date:** [DATE] **Provider:** Glass House Gardens Inc. **Client:** [CLIENT LEGAL NAME]

**Client contact:** [NAME, TITLE, EMAIL] **Provider contact:** [NAME, EMAIL]

## 1. Engagement

|                                |                                                                                       |
|--------------------------------|---------------------------------------------------------------------------------------|
| <b>Programme</b>               | [Diagnostic Sprint / Visibility Programme / Authority Programme / Category Ownership] |
| <b>Category measured</b>       | [e.g. field service management software]                                              |
| <b>Audience</b>                | [e.g. HVAC contractors]                                                               |
| <b>Geography</b>               | [e.g. United States]                                                                  |
| <b>Tracked competitors</b>     | [3–6 named vendors]                                                                   |
| <b>Answer Engines measured</b> | [ChatGPT, Perplexity, Google AI Overviews, Claude]                                    |

Share of voice is measured **against the tracked competitor set named above**. Changing that set changes the denominator, so mid-engagement changes are made by written amendment and noted in the affected report.

## 2. Activities

Provider will perform the following each month of the term. These are the contractual obligations; per MSA §3, **no outcome is guaranteed**.

| Activity                                                      | Quantity                       |
|---------------------------------------------------------------|--------------------------------|
| Buyer-intent prompts tracked                                  | [200]                          |
| Measurement runs                                              | [weekly]                       |
| Answer-engine content assets produced                         | [8–12]                         |
| Structured data / entity corrections implemented or specified | [as identified]                |
| Third-party profile and listing coverage actions              | [6]                            |
| Original research study                                       | [1 per quarter / not included] |
| Publisher and comparison-page outreach pitches                | [15 / not included]            |
| Written report with commentary                                | [1 per month]                  |
| Review call                                                   | [1 per month, 45 minutes]      |

**Not included** unless added by amendment: paid media management, website development, product or pricing consulting, sales enablement, PR crisis response, work in languages other than [English], or work in categories or geographies other than those named in §1.

### 3. Deliverables and acceptance

3.1 Deliverables are provided in [Google Docs / Markdown], with data exports in JSON.

3.2 Client has [5] business days from delivery to request revisions of a Deliverable. Provider will make [one] round of reasonable revisions within scope at no charge. Absent a request within that window, the Deliverable is accepted.

3.3 **Provider does not publish anything to a Client-owned property, or to any third-party platform on Client's behalf, without Client's express written approval of the specific item.**

### 4. Client responsibilities

Provider's timelines assume Client will:

- name a single approver with authority to sign off content and provide feedback within [5] business days;
- provide agreed access (CMS, analytics, search console) within [5] business days of the start date, at the least privilege sufficient;
- supply accurate factual information about its business, products, pricing, and customers;
- where an activity requires participation by a named Client employee — including any community, forum, or social participation — provide that person, who will post under their own identity with their affiliation disclosed, per MSA §5.

Delay in the above extends Provider's timelines by the period of delay.

### 5. Fees

|                      |                                                                                    |
|----------------------|------------------------------------------------------------------------------------|
| <b>Recurring fee</b> | [USD 2,500] per month                                                              |
| <b>One-time fee</b>  | [USD 1,500] on execution                                                           |
| <b>Billing</b>       | Monthly in advance, in US dollars                                                  |
| <b>Payment terms</b> | [Net 15]                                                                           |
| <b>Expenses</b>      | Pre-approved third-party costs (syndication, data, paid placements) billed at cost |

[Where a Diagnostic Sprint converts to a recurring programme within 45 days, the Diagnostic fee is / is not credited against the first month.]

### 6. Term

Start date [DATE]. Initial term **three (3) months**, then month to month. Either party may terminate on thirty (30) days' written notice after the initial term, per MSA §7.

## 7. Reporting and expectations

7.1 Reports state mention rate, citation rate, share of voice, and average position, with per-engine breakdowns and the underlying transcripts.

7.2 **Measured movement typically takes 60–90 days to appear** and is not linear. Early reports are expected to show activity and leading indicators — mention volume, source coverage, corrections implemented — rather than share-of-voice change. Both parties acknowledge this in setting expectations.

7.3 Answer Engines are non-deterministic. Figures describe a sampled prompt set at a point in time; the trend across scans is the signal, not any single scan.

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**Provider:** signature, name, title, date **Client:** signature, name, title, date

# Privacy Policy

***DRAFT FOR REVIEW BY COUNSEL — NOT LEGAL ADVICE.** Publish at /privacy. Bracketed items need a decision.*

**Effective:** [DATE] **Last updated:** [DATE]

**Glass House Gardens Inc.** ("we", "us") is a Manitoba, Canada corporation, carrying on business as **Shortlist AIO**. This policy explains what personal information we handle, why, and what you can do about it. We are subject to Canada's **PIPEDA**; where we handle information about people in other jurisdictions, additional rights may apply and are described below.

**Contact:** privacy@shortlistaio.com · [REGISTERED OFFICE ADDRESS, MANITOBA, CANADA]

## 1. Information we handle

**People who contact us or become clients.** Name, business email, phone, company, role, and the contents of our correspondence. Billing details are processed by our payment provider; **we do not store full card numbers.**

**People we contact for business development.** Business contact information — name, role, business email, employer — collected from **publicly available business sources**, such as company websites, public professional profiles, and business directories. We also hold our record of where and when we obtained it, and the lawful basis we relied on to contact you.

**Website visitors.** [Server logs including IP address, user agent, pages requested. We do / do not use analytics cookies.]

**Client business data.** Material a client gives us to perform services — which may incidentally contain personal information, and which we handle under our contract with that client and only on their instructions.

**We do not knowingly collect** information from anyone under 18, special categories of personal data, or consumer (non-business) contact information for marketing.

## 2. Why we handle it, and on what basis

| Purpose                                                           | Basis                                                                                                                                            |
|-------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------|
| Responding to enquiries, providing services, billing              | Contract performance                                                                                                                             |
| Business-to-business outreach to relevant decision-makers         | Legitimate interests (UK/EU); publicly available business information and the foreign-state exemption to CASL (Canada); CAN-SPAM compliance (US) |
| Security, fraud prevention, service operation                     | Legitimate interests                                                                                                                             |
| Meeting tax, accounting, and anti-spam record-keeping obligations | Legal obligation                                                                                                                                 |

**We do not sell personal information, and we do not share it for cross-context behavioural advertising.**

### 3. Marketing measurement

Our emails [do / do not] contain open- and click-tracking. Where they do, we record whether a message was opened and which links were followed, to measure whether our outreach is relevant and to stop contacting people who are not interested. [Confirm which – this affects disclosures under several regimes.]

### 4. Answer-engine measurement data

Our core service queries third-party AI answer engines about **companies and products**. That process is directed at organisations, not individuals. Responses occasionally name individuals — a founder or an executive quoted in public coverage. We do not seek out such information, do not build profiles of individuals from it, and do not use it for any purpose other than reporting to the client the measurement concerns.

Aggregated, anonymised measurement data may be used in published research. It does not identify individuals.

### 5. Who we share it with

**Service providers**, under contract and only as needed to operate: cloud hosting, email delivery and sequencing, payment processing, accounting, customer records. **AI providers** process content we submit; we do not submit client confidential information to consumer-tier AI services.

We may also disclose where required by law, or to a successor in a merger or sale of substantially all our business, on notice.

**Cross-border.** We are in Canada and use providers in Canada, the United States, and the EU. Information may be processed outside your country and be accessible to courts and authorities there under local law. For UK/EU transfers we rely on [Standard Contractual Clauses / adequacy].

### 6. How long we keep it

| Category                           | Retention                                                                                                                 |
|------------------------------------|---------------------------------------------------------------------------------------------------------------------------|
| Prospect records and outreach logs | [3] years from last contact — retained because anti-spam law requires us to be able to prove our basis for contacting you |
| Client records and contracts       | [7] years after the engagement ends, for tax and limitation purposes                                                      |
| Website logs                       | [90] days                                                                                                                 |
| Opt-out / suppression records      | <b>Indefinitely</b> — we must keep these to ensure we do not contact you again                                            |

### 7. Your rights

You may ask us to **access, correct, delete**, or **port** your personal information, to **withdraw consent**, or to **object to** or **restrict** our handling of it. To stop marketing, use the unsubscribe link in any email or write to [privacy@shortlistaio.com](mailto:privacy@shortlistaio.com) — we act on this within **10 business days** and normally at once.

If you ask us to delete your information, we will keep the minimum record needed to honour your opt-out and to meet legal record-keeping obligations, and nothing more.

We respond within **30 days**. We do not discriminate against anyone for exercising these rights.

**Complaints.** Canada — the Office of the Privacy Commissioner of Canada. UK/EU — your local supervisory authority. We would appreciate the chance to resolve it first.

## 8. Security

Access on a least-privilege basis, encryption in transit, multi-factor authentication on business-critical accounts, and client credentials provisioned individually and revoked when an engagement ends. **No system is perfectly secure**, and we do not claim otherwise. We will notify affected individuals and regulators of a breach as required by law.

## 9. Changes

We will post any change here and update the date above. Material changes will be notified to clients directly.

# Website Terms of Use

*DRAFT FOR REVIEW BY COUNSEL — NOT LEGAL ADVICE. Publish at /terms.*

**Effective:** [DATE]

These terms govern use of shortlistaio.com (the "Site"), operated by **Glass House Gardens Inc.**, a Manitoba, Canada corporation carrying on business as **Shortlist AIO**. By using the Site you accept them. **Services purchased from us are governed by a separate Master Services Agreement, not by these terms.**

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## 1. Permitted use

You may use the Site for lawful purposes. You may not: interfere with or disrupt it; attempt unauthorised access to it or to any related system; scrape or harvest it by automated means except as permitted by our robots.txt; or use it to send unsolicited communications.

## 2. Free reports and sample analyses

We may provide a free visibility report or sample analysis. **These are provided "as is", for information only, and without warranty.**

Any such report:

- measures a **sample** of prompts at a **point in time**, and answer engines are non-deterministic, so a repeat measurement will differ;
- reflects third-party systems we do not control and which change without notice;
- is **not** advice — commercial, legal, or otherwise — and must not be relied on as the sole basis for a decision;
- carries **no guarantee** of any outcome, and none is implied by any figure in it.

We may decline to provide a report, or withdraw one, for any reason.

## 3. Published research

We publish aggregated research about answer-engine behaviour. It is offered in good faith and describes what we measured, with our method stated. It is **not** a representation about any particular company's present or future results, and figures may be superseded.

## 4. Intellectual property

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Third-party names and marks are the property of their owners and are used for identification only. **Their appearance does not imply any affiliation with, sponsorship by, or endorsement from those owners.**

## 5. Third-party links

Links to third-party sites are provided for convenience. We do not control them and are not responsible for their content, accuracy, or practices.

## 6. Disclaimer and liability

**6.1 The Site is provided "as is" and "as available". We disclaim all warranties, express, implied, or statutory, including merchantability, fitness for a particular purpose, non-infringement, and any warranty of accuracy or uninterrupted availability.**

6.2 To the maximum extent permitted by law, we are not liable for any indirect, incidental, special, consequential, or punitive damages, or for lost profits, revenue, goodwill, or data, arising from your use of the Site.

6.3 Our total aggregate liability arising from the Site is limited to [CAD \$100].

6.4 Nothing here limits liability that cannot be limited at law, including for fraud. Some jurisdictions do not allow certain exclusions, so parts of this section may not apply to you.

## 7. Privacy

Our [Privacy Policy](#) explains how we handle personal information and forms part of these terms.

## 8. Changes

We may change these terms by posting an updated version with a new effective date. Continued use after that constitutes acceptance.

## 9. Governing law

These terms are governed by the laws of the **Province of Manitoba** and the federal laws of Canada applicable there. The parties submit to the exclusive jurisdiction of the courts of Manitoba, subject to any mandatory consumer protection right you have in your place of residence.

## 10. Contact

hello@shortlistaio.com · [REGISTERED OFFICE ADDRESS, MANITOBA, CANADA]